

6/12/2023

To: **U.S. Department of Commerce**

Stephanie Weiner, Acting Chief Counsel, National
Telecommunications and Information Administration.

Alan Davidson, Assistant Secretary of Commerce for
Communications and Information

Travis Hall, National Telecommunications and Information
Administration

From: Hal Peters

Quinnetech@gmail.com

www.FLCinfo.com / www.FlamelessLiquidCremation.com

AS SOON AS POSSIBLE, under the auspices of the Commerce Department's National Telecommunications and Information Administration, form a taskforce to URGENTLY address, at a minimum, the following undertakings. Any AI assurance ecosystem must consider:

1. That in computers, the adage: “Garbage in, Garbage out” is a truism. Not that the sum of human knowledge used to train AI is all “garbage” . . . but it must be realized that there is ALREADY a lot of revisionist history, hate, misinformation, sarcasm, bigoted writings, sadistic precepts, “alternate facts”, questionable medical information, conflicting ideologies, partisan beliefs . . . ALREADY polluting the SOURCES being used for training.

So in this light, all certified / officially registered AI systems need a way to identify the source(s) on which each output is derived, and if the source has been flagged as “questionable” (ie: not fully concurred to by an authorized AI oversight body) . . . “subject to interpretation” (ie: not fully concurred with by an authorized AI oversight body) . . . then the output needs to be flagged to reflect this attribute.

This **implies**, that America's AI assurance ecosystem has:

A designated and well-staffed "AI oversight body". **Q 31. What specific activities should government fund to advance a strong AI accountability ecosystem?** Set up this permanent body. (See also sections 5 and 8 below)

Each deployed AI system will have to go through a certification process and will have to be officially registered, before widespread distribution. Like the FDA . . . pulling the right to market is a strong incentive! **Q 32. What kinds of incentives / carrots – sticks . . . should government explore to promote the use of AI accountability measures?**

Each AI developer will have to demonstrate the use of a "mature" development **process**

2. Regulations need to be put in place governing the development **process** used for AI. To assure that EACH licensed AI developer implements a "mature" (ie: reliable, visible, auditable, repeatable, documented) software development / maintenance **process**.

For example, they will have to **demonstrate** the existence of a Project Office for AI. This **AI PMO** (Artificial Intelligence (oriented) Project Management Office) will be the one that sets company-wide rules, guardrails, and alarm reporting principles for deviations from what they deem as "responsible" AI.

The AI PMO will need to define the role, hire, and oversee the function of such various teams as: the staff charged with interfacing with Regulators, conducting internal Quality Assurance, a formal Ethics team, a formal Society impact assessment team, etc.

There have been reports, that companies **who should know better** . . are actually gutting the staff that has the expertise to prevent their product from going off-the-rails and bringing on not only bad press, but future lawsuits their way.

Q 16. The lifecycle of any given AI system or component presents distinct junctures for assessment, audit, and other measures. ...

b. How should AI audits or assessments be timed? Sporadically, randomly throughout the year.

c. How often should audits or assessments be conducted, and what are the factors that should inform this decision? More (monthly) or less often (yearly), depending on the compliance track record of the developer.

3. Current AI remediation efforts are cosmetic and ineffective. The solution being embraced by people unleashing this premature Pandoras Box is simplistic and hides the grave problems that need to be comprehensively addressed.

History will judge the current haphazard unleashing of AI as shameful, greed driven, and perhaps . . . as some knowledgeable people who are raising the alarm . . . catastrophic.

If someone asked AI: *“how are you putting lipstick on this pig?”* . . . it would reply . . .

We have let the “genie is out of the bottle”, it is true, so now we are playing catch up. We know that in the wrong hands, it can accelerate misinformation, hasten aggression, facilitate war games, greatly enable the talents of hackers, and other evil doers.

What developers are now doing is too little, too late! Current Big Techs’ solutions are inadequate. To shield themselves from the Pandora’s Box they have prematurely opened, they are using the same simple-minded approach used for filtering reader comments and peoples’ feedback on articles posted on the web:

- Block any input that has “potentially bad” or “inflammatory” keywords
- Limit access to only a few (hopefully benign) iterations.

Soon, they will start employing the unscrupulous approach used by the “Democratic Underground” people, who have an army of volunteer gatekeepers (various recruits of closed-minded agenda warriors) . . who will be judge and jury on:

- what opinions are legitimate
- what perspectives are acceptable
- what questions are allowed to be asked
- make subjective assessments if some snowflake somewhere would be triggered by some topic being discussed
- decide what false equivalences are sanctioned
- etc.

The current approach used is to block anything that seems “controversial” or “uncomfortable. The Flat Earth society might be offended by people questioning their “facts”. People claiming that Michelle Obama is really a man might be offended by people questioning their “facts”. There are people claiming that the gas inside containers found at Auschwitz were used to de-lice prisoners.

So why not consider all viewpoints (as equivalent)? If you search for cat on Twitter . . . you will be shown videos of cats being put into blenders. That is why.

A legitimate group should be charged with grappling with the question:

Why not give the lowest common denominators' writings and blogs a platform; as an equivalent status alongside what has been determined by the vast majority of educate people as "facts"?

In other words, as a simple "quick fix" to the bad press AI is getting lately . . . developers are just looking for incendiary topics, . . . and simply blocking such material hitting their "black box".

Regulators should insist that developers build in trace capabilities . . . to be able track what in humans is called the **Executive Function**. This area of the brain houses such things as: impulse control, planning, morality-based decision making, risk taking, conflict de-escalation, automatically factoring in cost / benefit analysis, understanding when "white lies" are preferred to the hard truth, etc.

We know that AI is still very immature! It will stay this way until we embed tools that provide:

- metrics
- be able to trace the current black-box's mysterious paths on how its "output" was constructed

Regulators, before giving a tool approval, before allowing it to be widely available . . . should demand proof that there is a way to be able to peer into what is now not transparent, the invisible gut.

Regulators, before giving a tool approval, before allowing it to be widely available . . . should demand that the tool should be able to fully account for, and be able to trace the specific deductive / inductive paths within. To make sure that morality, decency, ethics, and the "general good" is **not** ignored.

A question that can be asked by Regulators: Can their AI distinguish the "validity" (ie: rationality), wisdom (ie: positive contribution), and "acceptability" (ie: species preserving value) between two authors? **Yes or no?**

Does their AI tool give different "weights" to the societal "tolerability", moral "appropriateness", philosophical "legitimacy" between the works of two authors . . for example . . . **deSade** and **Descartes**?

If they are treated as mere "equivalents" . . . **heaven help us!** For any rational (non-Sadistic) person would agree that the work of one is from an on/again off/again madman, psychopath, nihilist troublemaker. A spoiled wealthy opportunist taking inflammatory potshots at current philosophic / political / governmental trends. The output of the other

is of a Renaissance man who gave a huge momentum to our modern era.

4. Regulatory bodies will need to react **quickly** to the impacts of AI, before the Pandora's Box cannot be closed (or . . . the Horses are out of the barn already). **Industry by industry specific approaches are needed, as of yesterday.** For example, to incentivize conversion to Electric Trucks . . . the US government must mandate to the Trucking Industry, that automated / robotic driving can be installed ONLY if the truck is electric! Otherwise . . . projections are that 300,000+ people will lose their job in the trucking industry within a few months . . . and there will be NO incentive, at all, for the industry to go electric.
5. As mentioned above, a well-staffed "AI oversight body" (ie: standing committee) needs to be created. It will:
 - Define and oversee the minimum requirements for what is meant when an expert project manager states that a "mature" Project Management development / on-going maintenance **process** needs to unfold for each AI tool. This body will need the expertise to oversee that, in fact, a fully "complete" governing / orchestration mechanism exists at EACH AI developer.
 - Pro-actively handle / adjudicate / moderate the CURRENTLY prevailing: Fake News, Alternative Facts, Revisionist History, medical miss-information, etc. (that has been ALREADY written and is being used to teach / have AI learn from the EXISTING internet) (see section 8 below – AI Oversight Body).
 - Provide expert consulting to the **Patent / Trademark Office** as to thorny AI related issues that will crop up
 - As detailed below, participate in an **international** full court press with all developers, leading universities, and governments. Win-win verifiable agreements and joint coordination should get universal buy-in. For all rational stakeholders will see it is in their best interest.(see section 7 below).
6. MOST IMPORTANTLY ... **AI accountability**, has to **start** with **EMPLOYERS**.

Q 26. Is the lack of a federal law focused on AI systems a barrier to effective AI accountability? As detailed in this section, YES!

Q 30. What role should government policy have, if any, in the AI accountability ecosystem? ... c. If a federal law focused on AI systems is desirable, what provisions would be particularly important to include? Which agency or agencies should be responsible for enforcing such a law ...

IRS Tax authority!

On the jobs front, imagine the historic layoff effects that have **ALREADY** happened to coal miners (ex: Appalachia), steel workers (ex: Pittsburgh), and Auto workers (ex: Detroit). Now multiply it by a factor of a **hundred**.

Businesses saved tons of money by outsourcing abroad, but the US Government shirked its responsibility to see to it that the displaced workers get fair treatment as a result of these actions. For example, get re-trained, maintain their pension / retirement benefits, get re-settled in a new location, etc.

Laissez-faire, cold, heartless “capitalism” (fact check: actually . . . an Oligopoly) is still winning the day.

Unless something is changed, the deployment of AI will trigger mass layoffs. Without intervention . . . heaven help us all.

There is an urgent need to put into place mandated laws for a new type of **funding, by firms deploying AI**. A **subsidy** for their workers displaced (at least for a while after being fired).

From the huge **savings** companies deploying AI will realize, from their enormous corporate labor cutbacks, from this financial **windfall** . . . we call for putting in, across the board, **laws** that mandate:

- a new type of tax based **funding**
- a **subsidy** for workers displaced (at least for a while after being fired)

In effect, putting in, across the board, **worker displacement subsistence living grants** (for all their former workers).

Q 34. Is it important that there be uniformity of AI accountability requirements and/or practices across the United States? Across global jurisdictions? Yes and Yes. Important across sectors! Follow / model historic efforts . . .

7. An international full court press / coordination effort

Time is running out. The AI “cat is out of the bag”, or more precisely . . . the AI Pandoras’ Box has been opened. Since this is happening internationally, we must look for partners, to negotiate with. The goal is to have ALL international stakeholders DEVELOPING AI also enforce regulations.

There are precedents for pullback from “mad scientist” type activities. Sanity has gained the upper hand in a few historic circumstances. Lets hope . . . international cooperation on reigning in AI will be one of them as well.

There was a mutual agreement to stop using mustard and nerve gas. The stopping of germ warfare research. The halting of genetic research on human beings’ fetuses. Halting “gain of function” work on developing super virulent pathogens. Is it not important, that AI should be treated with kit-gloves as well? To halt the mindless competition between greedy Oligopolistic corporations. (As a side – note: Halting today’s mad rush and arms race into hyper speed weapons should be a top priority as well!)

We must take **unilateral** preventive measures at home, ASAP, to mitigate what we can envision AI doing to the US economy, to thwart evildoers and traitors inside and outside our country using it.

It is true, China might now be applying AI to destroy us, but sitting down with them to negotiate putting the AI genie back into the bottle, should be in **their** ultimate best interest as well. Putting verifiable regulation in place is in everyone’s best win-win benefit. **At least sane people think this way.**

Just as negotiating the halting of testing of nuclear weapons above ground . . . all rational people . . . who want their citizens to survive . . . should be willing to sit down and negotiate win-win safety protocols for AI.

Since the AI world is starting to spin out of control . . . as a minimum . . . there needs to be an immediate effort . . . just as with potentially dangerous Medical Devices, to have each AI “manufacturer” be officially registered, and each of their “products” certified as to their potential for harm . . . before being unleashed on the world.

Q 28. What do AI audits and assessments cost? ... What are the best ways to consider costs in relation to benefits?

If there is pushback from bean counters, be aware, that there is a long-held concept in Industrial Engineering, that QUALITY IS FREE. This means what it says. Any effort to increase quality will result in much more savings . . . on the long run!

8. AI Oversight Body

Setting up of a “governing mechanism” to orchestrate all this

A standing AI review committee needs to be formed, ASAP! There is an immediate need to put together a **permanent** AI analysis / assessment commission framework. A stable, non-partisan body that can be a “Judge and Jury”, which has the expertise to declare:

- what AI is
- what AI can and cannot be allowed to facilitate.
- assess what source material was used to create the knowledge base of each AI tool (ie: it “learned” what from where)
- to regulate and make sure that all learning / teaching processes are **visible – traceable**.
- forge international efforts with the EU, China, etc. . (See item (7) above).
- ASAP put in place mutually agreed to verifiable mandates that all AI tool developers will have to meet. For example:
 - to build in, internal tracing mechanisms
 - build a **guardrail** mechanism, a standardized, modular software, an automated reporting process - - that is visible, one that can be monitored, and which automatically flags / reports certain critical dangers.

It needs to make use of **a standard** international dynamic “**exposure database**” (one that can be refined, augmented, expanded as new risks are identified). For example, a **uniform** plug-in **sub-system** programmed to raise a flag when:

- An AI tool starts to re-program itself.
- To alert developers and regulators when it tries to disable guardrails.
- Ring alarm bells for its developers and regulators when an AI system starts to look for cooperation with other AI entities.
- Make regulators and its developers automatically aware if an AI system attempts takeover of infrastructure (ex: rails, electric grid, nuclear weapons, etc.)
- Force the building of **self-diagnostic** mechanisms, internal “sanity checks” so to speak. To make sure regulatory guidelines are consistently being adhered to, on an on-going basis. Remember that HAL of 2001 fame was programmed quite well; but it blamed “human error” for its nervous breakdown . . . because it was instructed to keep a secret (as far as the true nature of the mission) . . . which was a contradiction to its basic instruction to never lie to a human. By the way, it did not help that the humans still alive were discussing pulling the plug on him (learned by reading their lips). Will future AI systems also resist being “decommissioned”?

The goal is to have, all over the world, an **accreditation process** for AI developers. One that assures that their internal development processes are “mature” enough (ie: have repeatable visible “quality” best practices) to guarantee that the products they produce meet all SAFETY standards. Have inspections (akin to FDA audit of drug manufacturers’ factories) to

assure that their development processes, as well as the AI products they produce have properly working safeguards, reporting capabilities, etc.

ALL THIS BEFORE their tool is allowed to be unleashed into the wild. That is why, a short PAUSE in this whole rush into investor lead AI feeding frenzy must be put on temporary hold!!

- Why do we need a standing review committee? Why is there an immediate need to put together this permanent AI analysis / assessment commission? **Because someone with authority and clout must be able to HELP answer such** questions as:

Whether it is legal to suck in / harness millions of items from the internet. For example:

- Existing photographs / artwork (find out what Getty Images has to say in this regard)
- Archiving millions of face images of people, gleaned by looking at (and extracting) faces from ALL pictures posted on the internet (find out what the ACLU in Illinois has to say about Clearview doing this)

Q 27. What is the role of intellectual property rights, terms of service, contractual obligations, or other legal entitlements in fostering or impeding a robust AI accountability ecosystem?

As with the two (2) examples above, this will be played out in the courts. As for now . . . the only thing we can do is to ensure that competent ethical (and internationally – sane) people are designing, developing, and deploying AI within the context of mandated best practices. And they incorporate the yet to be designed **common** sub-system / auditing extension / external database driven add-on self-diagnostic function as explained above.

All involved must realize, that the **formation** of this on-going review / assessment body needs to be done NOT at a snail pace, but in an ... all-hands ... hair-on-fire ... immediate ... crisis intervention mode.

It must have “teeth”. To have the rule of law behind it. To **insist** that ALL AI tools incorporate EFFECTIVE guardrails and use a common standard test script in order to ... on an on-going basis . . . be able to SELF-assess violations of the regulatory mandated **society saving** mechanisms (that still need to be defined / created).

ALL this, BEFORE full deployment. Till the new safeguarding functionalities described here are designed, internationally approved, and implemented . . . all AI tools need to be used only by limited audiences in beta-test mode.

Investors in AI startups and Big tech expect big rewards. But if haphazard competitive pressure brings what experts predict . . . that their precious long promised AI will go off the rails . . . the backlash will be so severe, that we might throw the “baby out with the wash-water”.

The takeaway . . . it is in **BIG TECH’S INTEREST** to wait for regulation, sanity, and guiderails to be implemented . . . for they **will** reap great rewards . . . but do it when they (and the rest of us) are assured that there are proper controls over AI.

There have been many studies and white papers already, with more said than done to curb the threats from AI . . . we all must take “the bull by the horn”, and do it ASAP!

For example, in 2018 the American Academy of Arts and Sciences under a Science, Engineering, and Technology project formed a multi-disciplinary effort to address the topic of: Technology and the Future of Work. More “exploratory meetings” at this stage will not save us. Yes, since 2018 . . . this has been on some peoples’ radar screen. Yet the stillness, the quiet, the lack of noise about the tsunami about to hit workers is deafening.

In Summary

Each Developer must be forced to offer regulators a way to “peer into” SOURCE materials, thus be able to determine its **legitimacy**. There must be reputable people (ie: the AI review / assessment / coordination / orchestration committee mentioned above) that can deem what is ACTUALLY real . . . or ACTUALLY unbiased . . . or merely Fake News, questionable opinion, revisionist history, hate and prejudice, sarcasm, humor, etc.

- Someone must be able to answer: Is a marketing claim, that AI is being used, true?
- Each AI tool must be able to determine what is moral (in the Judeo-Christian context), and what is not. What is dangerous, fair, etc.

Developers and Regulators should be able to assess if an AI tool is acting (or is being used) in a “moral” way. If not, should it still be allowed to operate (or red flagged to stop it)? Allowed to operate with yellow lights blinking? Will any of this give future lawsuits a “get out of jail” card?

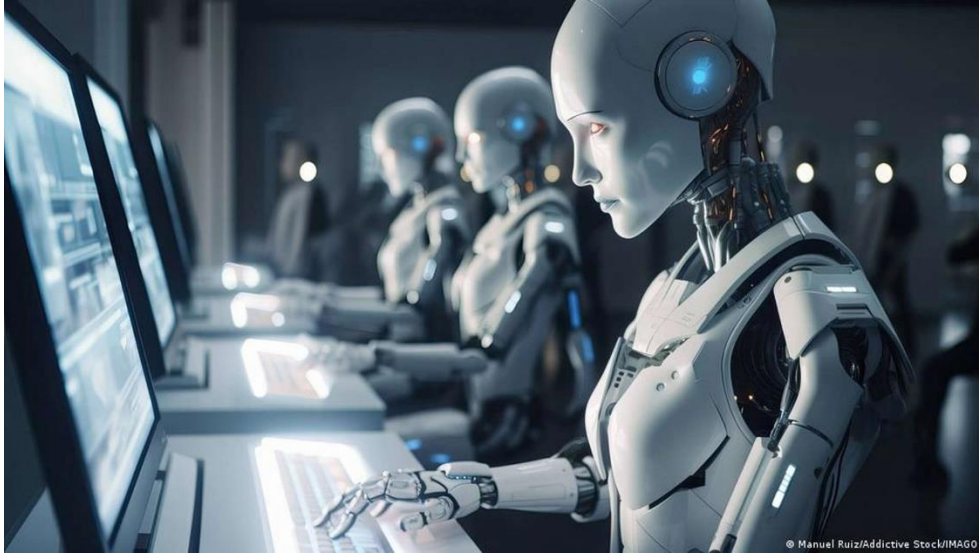
For example, if it recommends that someone commit suicide (as one did), or if it helps create a dangerous chemical (as it did in a reported case), or if it replies YES – as to whether a horse medicine is effective against Covid, etc.

Before full deployment is licensed for their tool . . . each developer has to figure out (and be able to conclusively demonstrate) that their tool takes into account “ethics” and assigns “societally preserving” weights. For example, their product can distinguish between the mind-set and contributions of de Sade -vs- Descartes.

A LOOK AT OUR EXPECTED FUTURE (through some Memes / Images)

A peek into the “office of the future”





Unemployed Lawyers / Programmers



A Laid off human begging for food



In Closing

If you are not panicking, then you might not be aware of the situation! As far as AI (Artificial Intelligence), Robby the Robot (of Forbidden Planet / Lost in Space fame) . . . would say . . . DANGER, WILL ROBINSON, DANGER!

We are not the only society building a super-intelligent system trying to solve the “alignment” problem. There are many (ex: Russia, Iran, N. Korea, China,..). They are all in the process of applying AI and trying to “align” it with the values of their creators ... creators whose values oppose ours, are diametrically against us, and many of whom would likely kill each other if they could. As the YouTube commentator Eric Lindauer has pointed out: “just from a game theory perspective, even a peaceful defense-oriented military may be forced to try to create (and control) "destructive" AI if only to understand the capabilities their enemies might possess”.

One way to look at AI is that it is the extension of human aggression, alternate history, bigotry, etc.... a magnification / catalyst to human miss behavior.

As demonstrated in the award winning PBS TV series “Connections” . . . all through history . . . weapons development has been the main driving force in science and evolution of knowledge. This is sad.

Einstein said: “The Nuclear Bomb (ie: technology) has changed everything . . except the mind of man.(ie: our animalistic behavior, aggression, greed, prejudices / hatred of “the other”, reckless risk taking, myopia, etc.)

A COROLLARY could be: AI has changed everything . . except the mind of man.(ie: our animalistic behavior, aggression, greed, prejudices / hatred of “the other”, reckless risk taking, myopia, etc.)

As depicted in the classic movie, Forbidden Planet... once a civilization evolves to a mature point . . . it will probably develop a way to destroy itself. That is why some people theorize that we will never have alien visitors, since a society that is sophisticated and mature enough to get to us will have destroyed itself before getting here.

Are you an optimist or a pessimist? That is the question.

Should we tackle AI, as outlined here, or just give up?